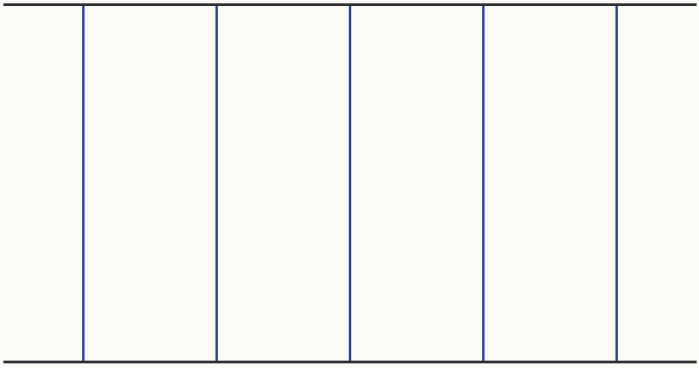
LAWS OF NEPAL · TRANSPARENCY STATUTES

Right to Information Act, 2064 (2007)

Proactive Disclosure, Information Officers, and Citizen Access Procedures



Transparency & Civic Law Digest

Statutory Reference Edition · 4 Pages

SECTIONS 3–5 · TRANSPARENCY MANDATE

Access to Information Held by Public Bodies

> *Every Nepali citizen shall, subject to this Act, have the right to obtain information on any matter of public importance or personal concern held in public bodies.*

Public bodies are legally obligated to classify, update, and proactively publish institutional operations every three months (Su-moto disclosure) and appoint a dedicated Information Officer under Section 6.

SECTIONS 7–10 · REQUESTS & APPEALS

Statutory Timelines and Safeguards

- Immediate Life/Safety Information: Must be provided within 24 hours of application.
- Standard Requests: Information Officer must supply requested records within 15 days.
- Internal Appeal: May be filed before the Head of Office within 7 days of refusal or non-response.
- National Information Commission Appeal: Second appeal within 35 days before the independent Commission (Chapter 3, Sections 11–26).

SECTION 3(3) · NARROW EXEMPTIONS

Five Protected Categories & Severability

Disclosure may be withheld strictly where release jeopardizes national sovereignty/security, ongoing criminal investigation, economic/commercial trade secrets, communal harmony, or personal privacy. Partial records must still be severed and released.